

Stereo. HCJDA 38
JUDGMENT SHEET

LAHORE HIGH COURT, LAHORE

JUDICIAL DEPARTMENT

Writ Petition No.46443/2024

Federal Board of Revenue

Vs.

Federal Investigation Agency and others

JUDGMENT

Date of hearing	29.04.2025
For the Petitioner:	Ms. Asma Hamid, Advocate, assisted by Mr. Mustafa Khalid, Advocate.
For Respondents No.1 to 4:	Mirza Nasar, Additional Attorney General, Mr. Asad Ali Bajwa, Deputy Attorney General, and Mr. Shahid Ahmad Ranjha, Assistant Attorney General, with Nadeem Akhtar, Assistant Director, FIA, Lahore.
Respondent No.5:	In person.
Amicus Curiae:	Barrister Shahryar Riaz.

Tariq Saleem Sheikh, J. – The Petitioner, Federal Board of Revenue (FBR), is a statutory body established under section 3 of the Federal Board of Revenue Act 2007 (FBR Act). It is vested with administrative, regulatory, and enforcement powers in relation to fiscal laws, including the Income Tax Ordinance 2001 (ITO), the Sales Tax Act 1990 (STA), and the Federal Excise Act 2005 (FEA). Respondent No.1, Federal Investigation Agency (FIA), is constituted under the Federal Investigating Agency Act, 1974 (FIA Act), for the “investigation of certain offences committed in connection with matters concerning the Federal Government.”¹

2. On 11.06.2024, Respondent No.4 (Assistant Director, FIA) issued a notice under section 5(5) of the FIA Act, and sections 94 & 160 Cr.P.C. to the Additional Commissioner Inland Revenue

¹ Preamble of the Federal Investigation Agency Act 1974

(AC Headquarters), Lahore, stating that Enquiry No. E-77/2024 was pending before the FIA Anti-Corruption Circle (ACC), Lahore, in relation to allegations of corruption, kickbacks, bribery, misconduct, and illegal approval of tax refunds to large taxpayer companies by officers of the LTO, Lahore. He required him to produce the records of income and sales tax refunds issued over the preceding five years of all large taxpayer companies of all Zones of LTO Lahore, including those of DWP Engineering Industries (Private) Limited. The Additional Commissioner responded through letter dated 14.06.2024, stating, *inter alia*, that section 216(1) of the ITO declares such records confidential and prohibits public servants from disclosing them. He further pointed out that section 216(2) contains a *non obstante* clause barring any court or authority, notwithstanding other laws, including the FIA Act, from compelling their production. Thereafter, Respondent No.4 issued a second notice dated 20.06.2024 to the Additional Commissioner Inland Revenue, reiterating the earlier demand and fixed 24.06.2024 for compliance. The Additional Commissioner, through reply dated 21.06.2024, reaffirmed the department's legal position.

3. On 18.07.2024, Respondent No.2 (Assistant Director, FIA Anti-Money Laundering Circle, Lahore Zone), issued notice under section 94 Cr.P.C. and section 25 of the Anti-Money Laundering Act, 2010 (AMLA), addressed to the Chief Commissioner, Inland Revenue, LTO Lahore, and the Additional Commissioner Inland Revenue (AC Headquarters), Lahore, again requiring production of the relevant records in connection with the same enquiry. Separately, on 19.07.2024 at 1:15 p.m., Abdullah Zulfiqar, Deputy Commissioner Inland Revenue (Respondent No.5) (Proforma Respondent), received notice dated 18.07.2024 under section 160 Cr.P.C. from Respondent No.2, directing him to appear the same day at 11:00 a.m. before the FIA and bring the refund records. The Proforma Respondent, in his reply of 19.07.2024, explained that the notice was received after the scheduled appearance time and requested that a fresh notice be issued with reasonable advance intimation. The Chief Commissioner Inland Revenue, through the Additional Commissioner Inland Revenue (AC Headquarters), reaffirmed

the department's above-mentioned position in detail by letter dated 22.07.2024.

4. On 23.07.2024, around 3:00 p.m., a team from the FIA entered the premises of the LTO Lahore with a contingent and presented a search warrant issued the same day by a Judicial Magistrate (Section 30), Lahore, on an application filed by Respondent No.4. The Proforma Respondent was compelled to hand over the record of DWP Engineering Industries (Private) Limited under duress and protest.

5. Through this petition under Article 199 of the Constitution of the Islamic Republic of Pakistan (the "Constitution"), the FBR, through its Additional Commissioner Inland Revenue (Headquarters), has challenged the legality of the notices dated 11.06.2024, 20.06.2024, and 18.07.2024 (collectively the "Impugned Notices"), the search warrant dated 23.07.2024, and the subsequent coercive measures (the "Impugned Actions"). It further prays that Enquiry No. E-77/2024 be quashed, and that the record obtained under protest by the Respondents No.1 to 4 pursuant to the impugned search warrant be directed to be returned to it forthwith.

6. Respondents No.1 to 4 have filed a consolidated reply opposing the petition. They submit that Enquiry No. E-77/2024 was initiated on the complaint of one Shabbir Ahmad, and involves serious allegations of abuse of power, corruption, and corrupt practices by officers of the LTO, Lahore. They contend that the Petitioner cannot invoke section 227(2) of the ITO and section 51(3) of the STA to shield such officers, as those provisions protect only *bona fide* acts done in good faith and in furtherance of the statutory mandate. Where a tax officer is alleged to have acted fraudulently, that protection does not apply. Accordingly, the Impugned Notices and Impugned Actions were lawful and no exception can be taken thereto.

Notice under Order XXVII-A CPC

7. This petition raises important legal questions that require interpretation of the Constitution and statutory laws. Therefore, this Court issued notice to the Attorney General for Pakistan under Order XXVII-A

CPC, and appointed Barrister Shahryar Riaz as *amicus curiae* for further assistance.

Petitioner's submissions

8. Ms. Asma Hamid, counsel for the Petitioner, submits that section 227(2) of the ITO bars any investigation or inquiry by any governmental agency against an officer acting in his official capacity under the ITO, its rules, instructions, or directions, without prior approval of the FBR, notwithstanding anything contained in any other law. Similar protection is extended by section 51(3) of the STA, section 41(3) of the FEA, and section 217(1) of the Customs Act, 1969. Counsel refers to the FBR's internal accountability mechanisms, including the Integrity Management Cell (IMC), Regional Integrity Committees, and Probe Committees established under Notification No. 06 (Chief-IMC)/2020 dated 11.11.2020, and contends that all investigative actions against officers of the Inland Revenue Service must conform to these provisions. She further maintains that neither the ITO nor the STA is listed in the Schedule to the FIA Act, nor do the alleged offences fall within its scope. Refund claims, she submits, are processed under section 170 of the ITO and sections 10 and 66 of the STA, while discrepancies are addressed through remedial mechanisms such as section 122 of the ITO and section 11A of the STA. These provisions establish a comprehensive statutory framework for assessment, oversight, and correction, which excludes parallel inquiries by external agencies. The FIA, she argues, cannot sit in judgment over actions taken under this legislative scheme. As the requisite prior approval was not obtained, the Impugned Notices and Impugned Actions are without lawful authority. She relies on **Universal Cables Industries Limited v. Federation of Pakistan and others** (PLD 2020 Sindh 601) in support of her submissions.

9. Ms. Hamid further argues that section 216(1) of the ITO obligates all public servants to maintain the confidentiality of taxpayer information. Section 56B of the STA and section 47B of the FEA cast a similar duty in respect of matters governed by those statutes. Section 216(2) of the ITO contains a *non obstante* clause which overrides all other laws, including the FIA Act, the AMLA, and the Code of Criminal Procedure, 1898. Therefore, the FIA could not lawfully require production

of the records in question under section 94 Cr.P.C. or section 25 of the AMLA, nor could it obtain them through a search warrant. Counsel further points out that any unauthorized disclosure of such information exposes the officer concerned to penal consequences, namely imprisonment or fine, under section 198 of the ITO. She adds that section 216(8) of the ITO prohibits the institution of prosecution for such disclosure unless prior sanction is obtained from the FBR, and argues that these provisions collectively underscore the high threshold imposed by law to protect taxpayer confidentiality.

10. Ms. Hamid further contends that the Impugned Notices are general in nature and do not identify any taxpayer other than DWP Engineering Industries (Private) Limited, and seek income and sales tax refund data spanning the last five years. This, she submits, constitutes a *mala fide* fishing expedition that is prohibited under the law. She argues that the search warrant obtained by Respondent No.4 is unsustainable because it was based on vague and unsubstantiated allegations.

Attorney General's opinion

11. The Attorney General has filed a written reply in response to the notice under Order XXVII-A CPC and has objected to the maintainability of this petition. He submits that the Constitution of Pakistan is founded on the principle of the Separation of Powers. The functions of the State are divided among three distinct organs: the Parliament (Legislature), which is primarily responsible for enacting laws and providing the country's legal framework; the Federal Government (Executive), which is charged with implementing the laws; and the Courts (Judiciary), which are responsible for adjudicating disputes between citizens or between a citizen and the State. The Constitution prohibits one organ from interfering in the domain of another. Both the FBR and the FIA are attached departments of the Federal Government. The FBR falls under the administrative control of the Revenue Division, whereas the FIA is under the Interior Division. The Attorney General further submits that any dispute or difference between the attached departments must be resolved internally in accordance with the Rules of Business, 1973, framed under Article 99 of the Constitution (the "Rules of Business") and should not be interfered with by any other organ, including the judiciary.

According to him, judicial intervention would disrupt administrative discipline and the constitutional architecture.

The Petitioner's response to the objection regarding maintainability

12. The Petitioner's counsel, Ms. Asma Hamid, submits that when this petition was filed, the FBR Chairman also held the additional charge as Secretary, Revenue Division. The decision to institute proceedings was made by him in that dual capacity, pursuant to delegated authority under section 8 of the FBR Act, the FBR Rules 2007, and the Rules of Business. In this regard, she places reliance on relevant notifications issued by the Federal Government. Counsel refers to section 207(2) of the ITO, and corresponding provisions in the STA and FEA, under which the FBR exercises supervisory authority over the administration of fiscal laws and the conduct of its officers. The power to initiate or defend legal proceedings on behalf of the Revenue Division, she submits, flows from a combined reading of Entry 5 of Serial No.35 and Entry 7 of Serial No. 7 of Schedule II to the Rules of Business. Therefore, according to her, the decision to file the writ petition and to authorize the Commissioner or any Additional Commissioner to sign pleadings and related documents was lawfully made.

13. Expanding on the above submission, Ms. Hamid submits that the FBR routinely institutes and defends legal proceedings against governmental agencies without seeking prior Cabinet approval. She referred to pending and decided cases before this Court and the Supreme Court involving the FBR and other federal entities such as DISCOs, NTDC, CPPA, OGDCL, the Appellate Tribunal Inland Revenue, the Federal Tax Ombudsman, and even the President of Pakistan. Counsel contends that while section 8 of the FBR Act empowers the FBR to delegate its functions to any government agency, the Chairman, or any appointed Member, Rule 3(1) of the FBR Rules authorizes internal delegation of business to the Chairman or a functional/support Member. Rule 3(3) provides that any act performed by the Chairman or a Member shall be deemed validly allocated until such delegation is formally made. Rule 5 further deems all such acts to be those of the FBR with the approval of the Federal Government. In light of Rule 5, the decision to file

the instant petition is deemed to have the approval of the Federal Government.

14. Ms. Hamid further submits that in the instant petition, the Federal Government, through the Ministry of Interior, is impleaded as a party only because the FIA operates under the administrative control of the Ministry of Interior, as reflected in Schedule II, Serial No. 18, Entry Nos. 31 and 32 of the Rules of Business. The primary respondent, however, remains the FIA. Thus, approval from the Cabinet is not required by the Chairman, FBR/Secretary, Revenue Division, to institute legal proceedings against the FIA. She maintains that, given the volume and frequency of the litigation in which FBR is involved, it would be impractical to obtain Cabinet approval before instituting any petition against another government entity.

15. Ms. Hamid contends that Respondents No. 1 to 4 have interfered with the Petitioner's statutory responsibilities concerning tax administration, including its confidentiality obligations and internal oversight functions under the applicable fiscal laws. In these circumstances, the Petitioner, acting through its duly authorized officer, qualifies as an "aggrieved party" within the meaning of Article 199(1)(a) of the Constitution and is competent to file this petition.

Amicus curiae's submissions

16. The *amicus curiae*, Barrister Shahryar Riaz, submits that although the FBR Act establishes the FBR and empowers it to perform various functions, it lacks juristic personality. Under the Rules of Business, it remains an attached department of the Federal Government. It could not, therefore, file the instant petition. He further submits that Article 199(1)(a) of the Constitution requires an application by an "aggrieved party" as a condition precedent to invoking the High Court's jurisdiction. In law, one is "aggrieved" only if the impugned action infringes one's rights or freedoms, and judicial review lies only where the applicant demonstrates a direct and personal interest in the impugned act. Absent such interest, no *locus standi* arises. He relies upon **Wafaqi Mohtasib Secretariat and others v. SNGPL and others** (PLD 2020 SC 586).

17. Barrister Riaz maintains that the constitutional jurisdiction of the High Court is discretionary and meant for the protection of individual rights. It cannot be invoked to resolve internal administrative disputes between executive entities – in this case, the FBR and the FIA. Such issues, he submits, must be addressed through the coordination mechanisms prescribed by Rule 8(2) of the Rules of Business. The *amicus* contends that the filing of this petition also raises a question of institutional propriety. While the Rules of Business do not create a formal bar to judicial review, they embody constitutional principles of executive coordination and internal discipline. As observed in **Barrister Sardar Muhammad v. Federation of Pakistan and others** (PLD 2013 Lahore 343), the Rules of Business “flow out of the Constitution” and serve as “the sinews of a workable government.” They are intended to structure deliberative engagement between executive divisions. The *amicus* argues that because an internal coordination mechanism is available and no individual legal grievance is shown, the Court should exercise restraint. Entertaining such petitions risks converting constitutional litigation into a dispute of the “Federation against itself.”

18. Barrister Riaz argues that the protection claimed by the Petitioner under section 227(2) of the ITO and section 51(3) of the STA does not extend to acts that are *prima facie* fraudulent or corrupt. According to him, where the alleged conduct falls outside the lawful discharge of official functions, the requirement of prior approval from the FBR does not operate as a jurisdictional bar. Consequently, the FIA can lawfully hold an inquiry or make investigations. The *amicus* relies upon **Amjad Qadoos v. Chairman, National Accountability Bureau (NAB), and others** (2014 SCMR 1567) in support of this submission.

Discussion

19. Admittedly, both the FBR and the FIA are attached departments of the Federal Government under the Rules of Business. The Attorney General has objected to the maintainability of this petition. I must, therefore, address this issue first.

20. The High Court's power of judicial review under Article 199 of the Constitution is an original jurisdiction. It is, however, subject to the Constitution and *inter alia* the condition that no other adequate remedy is provided by law. Further, in respect of the matters mentioned in Article 199(1)(a), the High Court must be moved by an aggrieved party, while any person may approach it for an order under Article 199(1)(b). As for the matters falling within the ambit of Article 199(1)(c), it can exercise jurisdiction only on the application of an aggrieved person. Determining whether a party meets this threshold is a mixed question of law and fact governed by settled principles and not left to judicial discretion.

21. It is important to note that Article 199 has used two expressions: "aggrieved party" and "aggrieved person". The rule of interpretation is that when the legislature uses two different terms, the intention is to convey distinct meanings. In *Ex parte Sidebotham*, (1880) 14 Ch.D. 458, James L.J. defined the term "person aggrieved", which is widely accepted by courts. He wrote: "A person aggrieved must be a man who has suffered a legal grievance, a man against whom a decision has been pronounced which has wrongly deprived him of something or wrongfully refused him something, or wrongfully affected his title to something." On the other hand, he added, "in order to be an 'aggrieved party', it would be imperative for a party to show that any of his proprietary or personal rights, as recognized by the laws of the country, has been invaded or denied to him. 'Right' and 'remedy' are no doubt complementary concepts because right without remedy would be meaningless, just as it would be inconceivable to think of a remedy without a corresponding right."²

22. The Supreme Court of Pakistan adopted the same approach in the landmark case of *Tariq Transport Company v. Sargodha Bhera Bus Service and another* (PLD 1958 SC 437). It emphasized that it is a "basic principle that a person seeking judicial review of administrative or *quasi*-judicial action must show that he has a direct personal interest in the act which he challenges before his prayer for review is entertained." The Court also cited with approval the opinion of Justice Frankfurter in

² Fazal Karim, *Judicial Review of Public Actions*, Second Edition, vol. 3, p. 1479.

Giant Anti-Fascist Refugee Committee v. McGrath (341 U.S. 123, 151), where he observed: “A petitioner does not have standing to sue unless he is interested in and affected adversely by the decision of which he seeks review. His interest must be of a personal and not of an official nature.” The Supreme Court further explained that an application for an order of *certiorari* can be made only by an aggrieved party and not by any member of the public; and that in the case of an application for *mandamus*, the applicant must demonstrate a personal legal right to the performance of a legal duty by the party against whom the writ is sought. This principle was reaffirmed in **Hafiz Hamdullah v. Saifullah Khan and others** (PLD 2007 SC 52), where the Court held that an “aggrieved person” is one who has “suffered a legal grievance, against whom a decision has been pronounced which has wrongfully deprived him or wrongfully refused him something which he was legally entitled to. It is also the requirement that the person invoking the constitutional jurisdiction under Article 199 of the Constitution has to establish that any of his legal or fundamental right guaranteed under the Constitution has been violated, resulting in legal loss.”³

23. The word “right” in the context of Article 199 is not used in its strict juristic sense. It suffices if the person claiming to be aggrieved “had a personal interest in the performance of the legal duty which, if not performed or if performed in a manner not permitted by law, would result in the loss of some personal benefit or advantage or the curtailment of a privilege or liberty or franchise.”⁴ However, where a department of the government acts in its official capacity, courts generally require that the grievance be grounded in a concrete legal injury rather than a procedural or institutional inconvenience. This proposition is, however, subject to certain exceptions. Where a statute expressly authorizes a department or statutory body to initiate legal proceedings, or where the entity performs adjudicatory or commercial functions akin to a private litigant, a limited but justiciable interest may suffice.

24. Barrister Shahryar Riaz has contended that the FBR cannot qualify as an aggrieved party within the meaning of Article 199 because it

³ Also see: *Commissioner Inland Revenue v. OGDCL and others* (2015 PTD 899).

⁴ *Mian Fazal Din v. Lahore Improvement Trust and another* (PLD 1969 SC 223).

lacks personal or proprietary rights. This argument may carry weight in cases involving mere institutional disagreement. However, it does not hold where the impugned action interferes with statutory safeguards that condition or restrict the lawful exercise of executive authority. In the present case, the Petitioner has challenged a series of coercive measures, including the initiation of Enquiry No. E-77/2024, without prior sanction under section 216(8) of the ITO, the execution of a search warrant, and the compelled production of confidential taxpayer records. It alleges that these actions disregarded procedural and legal protections under section 216(2) of the ITO. These provisions are not merely administrative formalities, but rather legal constraints that structure the exercise of investigative powers. Their circumvention constitutes a legal injury sufficient to confer standing, even in the absence of a personal or proprietary interest. The threshold for *locus standi* is, therefore, satisfied.

25. The FBR does not have a separate juristic personality. However, constitutional standing under Article 199 does not depend solely on whether the petitioner is a juristic person. In **Government of the Punjab and another v. Chief Election Commissioner and others** (PLD 2010 Lahore 1), this Court observed that the expression “any aggrieved party” in Article 199 is “quite comprehensive” and must be given “the fullest possible meaning and amplitude.” It held that the term embraces “an individual, group of persons, legal entity and the authority,” and that “where a grievance comes within the purview of Article 199 of the Constitution, such party (aggrieved party) shall have the right to file the petition against a ‘person’ which has been defined in sub clause (5) thereof.” In the present case, the petition has been filed through the Secretary, Revenue Division, who also serves as the Chairman, FBR, and is duly empowered under the Rules of Business, the FBR Act, and internal delegations. More importantly, the FBR is a regulatory department charged with the implementation of fiscal statutes, and the grievance raised here concerns direct interference with its statutory responsibilities. Therefore, the absence of juristic personality does not bar the invocation of this Court’s jurisdiction.

26. Now, I turn to the precedents cited by the *amicus*. In *Wafaqi Mohtasib Secretariat and others v. SNGPL and others*

(PLD 2020 SC 586), the question that fell for determination was whether the Wafaqi Mohtasib Secretariat (or, for that matter, even the Ombudsman) could maintain a petition challenging an order that interprets and determines the scope of the Ombudsman's powers under the Establishment of the Office of the Wafaqi Mohtasib (Ombudsman) Order, 1983, read with the Federal Ombudsmen Institutional Reforms Act, 2013. The Supreme Court ruled that the *Wafaqi Mohtasib Secretariat* was not a legal entity and therefore lacked the necessary *locus standi* to file a petition before the Court. It observed that the Secretariat is at best an administrative term and refers to the establishment of the offices of the Ombudsman under the Wafaqi Mohtasib (Investigation and Disposal of Complaints) Regulations, 2003. The Supreme Court further held that even the Ombudsman, when acting in his institutional role to redress maladministration, is not an "aggrieved person" within the meaning of Article 199 where the grievance relates to the interpretation or curtailment of statutory powers. A neutral adjudicatory forum cannot assert a legal right to defend or expand its jurisdiction. This, the Court noted, is distinct from cases where a public functionary challenges an action that affects personal rights, such as service conditions. The present case stands on a different footing. The FBR is not an adjudicatory forum but a regulatory department charged with implementing fiscal laws. It does not seek to contest the scope of its jurisdiction but alleges that executive action by another agency was taken in disregard of section 216 of the ITO. The holding in *Wafaqi Mohtasib Secretariat* does not apply here.

27. In *Amjad Qadoos*, the Supreme Court considered whether section 227(3) of the ITO barred an investigation by NAB into allegedly fraudulent tax refunds. It held that statutory protection under that provision extends only to acts done lawfully, in good faith, and in furtherance of official duty. Where the conduct is *prima facie* unlawful, such as issuing bogus or excessive refunds, the protection does not apply, and the requirement of prior approval from the FBR under section 227(3) does not bar the initiation of an inquiry.

28. *Amjad Qadoos* was decided in the context of the National Accountability Ordinance, 1999, a special statute containing an express overriding clause and conferring primacy upon NAB in matters of

corruption. It was in this legislative framework that the Supreme Court held that no prior FBR approval was required to initiate an inquiry where the alleged acts were *prima facie* unlawful and fell within NAB's statutory mandate. The present case arises under a materially different set of legal provisions. The proceedings have been initiated by the FIA under the FIA Act, which does not confer overriding authority over fiscal statutes nor dispense with permission requirements expressly stipulated by Parliament. In the absence of any offence identified under the FIA Act itself, the protections under section 227(2) of the ITO and section 51(3) of the STA continue to apply.

29. Rule 8(2) of the Rules of Business ordains that where a difference of opinion arises between the Divisions, the Minister primarily responsible must attempt to resolve it through consultation with the other Ministers. If no agreement is reached and the Minister wishes to press the matter, it shall be submitted to the Prime Minister or, if the Prime Minister so desires, to the Cabinet. In urgent cases, the Minister may submit the case to the Prime Minister at any stage. Where the Prime Minister is the Minister-in-Charge, the final views of the other Divisions concerned must be obtained before the case is submitted to him. In the present case, the dispute lies between the attached departments of the Revenue Division and the Interior Division. The Petitioner was obligated to pursue the consultative process prescribed by Rule 8(2) before invoking this Court's jurisdiction under Article 199 of the Constitution. In **Federation of Pakistan v. Muhammad Akram and others** (1995 SCMR 1647), the Supreme Court held that Rule 8(2) sets out a binding framework for inter-divisional coordination and must be followed. A similar view was taken by the Sindh High Court in **Civil Aviation Authority v. Federation of Pakistan and others** (2024 PTD 1507), where the petition was declined on the ground that the requisite consultation under Rule 8(2) had not been undertaken. The Court emphasized that Rule 8(2) provides a structured mechanism to resolve such disagreements and cautioned against judicial encroachment upon matters that lie within the administrative domain.

30. It is trite that the High Court's jurisdiction under Article 199 is discretionary.⁵ The finding on *locus standi* in paragraph 24 addresses only the threshold question of competency to invoke this jurisdiction. Whether the Court should exercise that jurisdiction is a separate inquiry guided by considerations of institutional comity, proportionality, and the availability of executive remedies. Rule 8(2) of the Rules of Business is not a mere formality but an institutional safeguard that reinforces the doctrine of separation of powers and preserves internal administrative discipline. While Rule 8(2) does not impose a jurisdictional bar, it reflects a constitutional commitment to executive coordination and the principle of institutional comity, which discourages judicial interference where executive remedies are available and adequate. Judicial review under Article 199 is not designed to serve as an internal arbitration forum for the executive, especially in the absence of a cognizable legal grievance. There is nothing on record to show that the consultative process mandated by Rule 8(2) was initiated, let alone exhausted. In the circumstances, judicial intervention at this stage is not warranted.

31. It may be noted that Respondent No.5, Abdullah Zulfiqar (Proforma Respondent), the officer who was issued one of the Impugned Notices and compelled to produce the refund record under protest, filed Writ Petition No. 46365/2024. That petition was partly allowed. Since the validity of those measures, insofar as they affected him personally, has already been adjudicated, it is not necessary to re-examine them here.

Disposition

32. In view of the above, while this petition is not barred for want of *locus standi*, the Court declines to exercise its jurisdiction at this stage because the Petitioner has not demonstrated that the consultative process under Rule 8(2) of the Rules of Business has been exhausted, or that the Impugned Notices and Impugned Actions have caused a legal injury that cannot be remedied through internal administrative mechanisms. Accordingly, the Petitioner may pursue the channels

⁵ *Nawab Syed Raunaq Ali etc. v. Chief Settlement Commissioner and others* (PLD 1973 SC 236); *Rana Muhammad Arshad v. Additional Commissioner (Revenue), Multan Division, and others* (1998 SCMR 1462); *Member (S&R)/Chief Settlement Commissioner, Board of Revenue, Punjab, and another v. Syed Ashfaq Ali and others* (PLD 2003 SC 132), *Abdul Majeed Talani v. Province of Sindh and others* (PLD 2025 Sindh 19).

provided under Rule 8(2) and, if the grievance remains unresolved, may seek appropriate relief in accordance with the law. The validity of the search warrant and the propriety of its execution, if still in dispute, may be agitated in such proceedings.

33. **Disposed of.**

(Tariq Saleem Sheikh)
Judge

Naeem

Announced in open court on _____

Judge

Approved for reporting

Judge